

# 25STCP05024 25STCP05024

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP05024 Hearing Date: July 31, 2026 Dept: 833

John Doe, Case No. 25STCP05024

Hearing:

July 31, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

Naddia Palacios, et. al. Judge: Joseph Lipner

[Tentative] Order

Denying Petition for Writ of Mandate

## INTRODUCTION

Petitioner John Doe ("Petitioner") seeks a writ of mandate compelling Respondent Naddia Palacios and the University of Southern California ("USC") (collectively, "Respondents") to set aside USC's indefinite suspension of Petitioner.

The Court DENIES the petition for writ of mandate.

## BACKGROUND

A. The Attack and USC's policies

On December 10, 2025, USC imposed a suspension on Petitioner, based on an allegation by a student that on November 29, 2025, during the UCLA-USC football game at the Coliseum, following a verbal argument over seating issues, Petitioner struck the other student in the face with a closed fist which resulted in the student losing two teeth, and then “fled the scene.” (AR 1.)

Petitioner’s actions violated a policy in the Student Handbook, which prohibits, among other things, “[c]ausing, intending to cause, or threatening physical harm against a person or group, or behavior that reasonably causes apprehension of harm... This includes fighting or other physical acts that may jeopardize the health, safety, or welfare of an individual or group.” (AR 73.)

USC’s rules allow it to take interim measures to protect its community when it receives reports of misconduct. (AR 85.) Interim measures are not disciplinary in nature, and do not indicate the university has decided the veracity of the allegation(s), but are put in place to protect the health, safety, and/or welfare of the university community or any member of it and to prevent the substantial disruption of university operations. (AR 85.)

Interim measures may be imposed when there is reasonably credible information that, if assumed true, indicates the student and/or organization poses a substantial threat to any of the following: (1) the safety or well-being of anyone in the university community; (2) the property within the university community; or (3) the orderly operation of the university. (AR 83.)

In deciding to suspend Petitioner, the Interim Action Committee (“IAC”) considered:

- the significant physical harm that Petitioner’s conduct caused another student, i.e., the loss of two teeth;

- the seemingly random and unprovoked nature of Petitioner’s conduct, and his

subsequent decision to flee the scene, which suggests the risk of additional and continued harm to members of the USC community; and

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the University's obligation to provide a safe environment.

Petitioner's actions also led to the Los Angeles Police Department pursuing a criminal charge for aggravated assault. (AR 39-40)

The suspension was to remain in effect until the final resolution of the university's disciplinary process and/or conclusion of law enforcement proceedings. (AR 1-3.)

USC did not provide any evidence or other information relied upon to impose the immediate suspension with no notice and hearing. (AR 1, 191, 22.)

#### B. Petitioner's appeal

On December 17, 2025, Petitioner appealed his suspension, arguing that less restrictive measures could adequately reduce or mitigate the threat. (AR 23-27.)

On December 22, 2025, Respondents denied Petitioner's appeal on the grounds that the appeal failed to "present[] a basis from which to conclude that the less restrictive measures you proposed would be sufficient to adequately reduce or mitigate the substantial threat indicated by the reported information." (AR25.)

On December 23, 2025, USC notified Petitioner that he would be able to complete his courses in Spring 2026 remotely or asynchronously. (AR 30.)

#### C. Student rights at USC

The USC Disciplinary Process and the Student Procedural Rights and Protections provides that:

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the accused student is presumed not responsible, i.e. innocent;

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the student has a right to decline to participate;

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the student has a right to inspect the evidence ("relevant documents and relevant information gathered)" but is not entitled to have a copy of the evidence;

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the student does not have the right to confront or cross-examine (either directly or indirectly) either accusers or witnesses;

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the student does not have the right to be represented by counsel;

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the student is entitled to a fair and impartial review of the incident; and

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a determination of responsibility must overcome the presumption of innocence with a preponderance of the evidence that a violation occurred.

(AR 76-103.)

## LEGAL STANDARD

The petition is brought pursuant to CCP section 1085. There are two essential requirements to the issuance of an ordinary writ of mandate under Code of Civil Procedure section 1085: (1) a clear, present, and ministerial duty on the part of the respondent, and (2) a

clear, present, and beneficial right on the part of the petitioner to the performance of that duty. (California Ass'n for Health Services at Home v. Department of Health Services (2007) 148 Cal.App.4th 696, 704.) "An action in ordinary mandamus is proper where ... the claim is that an agency has failed to act as required by law." (Id. at 705.)

"Generally, mandamus is available to compel a...agency's performance or to correct an agency's abuse of discretion when the action being compelled or corrected is ministerial." (AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health (2011) 197 Cal.App.4th 693, 700.) "While, of course, it is the general rule that mandamus will not lie to control the discretion of a court or officer, meaning by that that it will not lie to force the exercise of discretion in a particular manner ... [it] will lie to correct abuses of discretion, and will lie to force a particular action by the inferior tribunal or officer, when the law clearly establishes the petitioner's right to such action.'" (Flores v. Dept. of Corrections & Rehabilitation (2014) 224 Cal.App.4th 199, 208.)

An agency is presumed to have regularly performed its official duties. (Evid. Code § 664.) Petitioner "bears the burden of proof in a mandate proceeding brought under Code of Civil Procedure section 1085." (California Correctional Peace Officers Assn. v. State Personnel Bd. (1995) 10 Cal.4th 1133, 1154.)

"On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.' ....¿ Interpretation of a statute or regulation is a question of law subject to independent review." (Christensen v. Lightbourne (2017) 15 Cal.App.5th 1239, 1251.)

## DISCUSSION

A. Petitioner cannot bring a petition under Section 1094.5, but Petitioner does not show he can bring a petition under Section 1085 either

Petitioner's opening brief includes a section that describes why he cannot seek relief under Code of Civil Procedure Section 1094.5, subd. (b). (Opening Brief, 8:11-19.)

Petitioner's

request for relief under Code of Civil Procedure Section 1085 does not include any discussion of what ministerial duty USC has not complied with. Petitioner also fails to allege how USC's decision was an abuse of discretion. Therefore, Petitioner cannot seek relief under Code of Civil Procedure Section 1085.

Almost

all of the California cases cited in Petitioner's brief relate to notice and a hearing as it relates to a final disciplinary decision, not the emergency, interim suspension at here. In fact, Petitioner does not identify a single case or statute that would require USC to provide notice and a hearing before issuing an emergency, interim suspension to protect its community.

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cases from non-California jurisdictions are inapposite. All three cases involve public universities and constitutional due process issues. Petitioner does not have a constitutional right at stake in this case. (*Boormeester v. Carry* (2023) 15 Cal.5th 72, 87 ["Because this matter involves a private university, no constitutional rights are at stake and a greater degree of flexibility is warranted"].)

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Court also finds that USC's process was fair and was within the university's discretion, based on the student handbook (AR 83 ["interim measures may be imposed when there is reasonably credible information" that a student poses a substantial threat to anyone in the university community].) At the time the interim suspension was issued, USC provided Petitioner with a detailed notice of the allegations against him, and the facts and analysis that formed the basis of the interim suspension. (AR 1-3.) Petitioner had a clear notice of the factual basis for the interim suspension and had an opportunity to appeal to ask for less restrictive measures. (AR 23-24.) Thus, Petitioner had adequate notice of the charges and reasonable opportunity to respond.

Petitioner

appears to allege that evidence was withheld, but the record adequately indicates that Petitioner was provided detailed notice of the facts. (AR 1-3.) Petitioner has not identified any facts from the DPS report that he now has that he purportedly did not know and was unable to respond to in his appeal. (AR 23-24.) Petitioner's argument that the burden has shifted to him to disprove the allegations is also not persuasive. USC has not made any final

determination of the allegations against Petitioner or placed the burden on him to prove his innocence.

Petitioner

also cannot demonstrate that USC's actions were an abuse of discretion. As discussed above, the handbook gives USC the discretion to issue an interim suspension when there is concern about student safety. That is what USC did here.

#### CONCLUSION

The Court DENIES the petition for writ of mandate. Pursuant to Local Rule 3.231, subd. (n), Respondents shall prepare, serve, and ultimately file a proposed judgment.

IT IS SO ORDERED.

Dated: July 31,  
2026

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Joseph  
Lipner

Superior  
Court Judge